



File No.: EXP202400496

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 9, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure of file number EXP202104139, followed against JAÉN, SENTIDO Y COMÚN (hereinafter, the claimed party). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: TO REQUIRE, by virtue of the corrective powers granted to control authorities by Article 58.2 of the GDPR, that the responsible party configure the sending of emails in such a way that they can be sent with a blind copy when addressed to a plurality of interested parties, as a measure that should be adopted to cease the infringing conduct analyzed, correct the effects of the infringement committed, and adapt the processing to the requirements set forth in Articles 5.1.f) and 32 of the GDPR, as well as the provision of evidence of compliance with the requirements, within a period of 10 working days from the day following the receipt of the notification of this resolution.”

SECOND: The resolution of the sanctioning procedure, which granted a period of 10 working days for the adoption of the imposed measures, was notified to the claimed party, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated June 23, 2022, after the attempt at postal notification proved unsuccessful, as evidenced in the file.

THIRD: After the indicated period elapsed without any written communication having been received by this Agency regarding the measures implemented by the claimed party, they were required again on three occasions to provide evidence to this Agency of having adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

The notification of the first requirement was carried out in accordance with the rules established in the LPACAP through electronic means, not being collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on July 25, 2022.

The second and third requirements were returned to sender as unknown at C/ Jorge Juan, 6
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Letters dated November 20 and December 15, 2023, according to the acknowledgments of receipt in the file, despite one being sent to the tax domicile of the respondent provided by the State Agency for Tax Administration and the other to the contact address published by the respondent on Facebook.

FOURTH: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal is possible due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SIXTH: On January 29, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.6 of the GDPR.

SEVENTH: The agreement to initiate the present sanctioning procedure was notified, in accordance

with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated February 16, 2024, after being returned to sender by the postal service due to unknown recipient, despite being sent to the tax domicile of the respondent provided by the State Agency for Tax Administration, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party electronically through the designated electronic address.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

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PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance indicated in the first, second, and third antecedents were notified in accordance with the provisions of the LPACAP. Said resolution became final and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In light of the facts presented, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the respondent for violating Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the

provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;”

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Classification and Qualification of the Infraction

This infraction is classified under Article 83.6 of the GDPR, which stipulates the following:

“The failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the party claimed for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Article 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on JAÉN, SENTIDO Y COMÚN, with NIF G23798606, for an infraction of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO ORDER JAÉN, SENTIDO Y COMÚN, with NIF G23798606, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and

enforceable, to prove compliance with the resolution of the sanctioning procedure of file number EXP202104139.

THIRD: TO NOTIFY this resolution to JAÉN, SENTIDO Y COMÚN.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

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